

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AIRBOSS DEFENSE GROUP, LLC, *Complainant*

v.

DOCKET NO. 24-14

FEDEx TRADE NETWORKS TRANSPORT & BROKERAGE, INC.;
MEDITERRANEAN SHIPPING COMPANY S.A. AND
MEDITERRANEAN SHIPPING COMPANY (USA) INC., AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY S.A.; AND
TOTAL TERMINALS INTERNATIONAL, LLC, *Respondents*.

Served: May 6, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO EXTEND TIME TO FILE A RESPONSE

On March 20, 2024, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding. The response to the complaint is due 25 days after date of service of the complaint.

On April 8, 2024, Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FedEx”); Mediterranean Shipping Company S.A. and Mediterranean Shipping Company (USA) Inc., as Agent for Mediterranean Shipping Company S.A. (collectively, “MSC”); and Total Terminals International, LLC (“Total Terminals”) (collectively, “Respondents”), filed a Joint Motion for Extension of Time to File a Response (“Respondents’ Motion to Extend”) seeking a 30-day extension of time to respond to the complaint.

On April 16, 2024, an order issued granting a 25-day extension of time to May 10, 2024.

On May 1, 2024, Respondents filed an Urgent Joint Motion for Extension of Time to File a Response (2nd Motion to Extend), again seeking a 30-day extension of time to respond to the complaint. As good cause, Respondents assert that they “have been diligently gathering documentation...but the process has been delayed by the complexity of the matter which involves thousands of charges, and...multiple parties and multiple related proceedings pending in Federal Court.” 2nd Motion to Extend at 1. Respondents assert that a further extension “will also allow the parties to continue their good faith efforts toward a global resolution and will ultimately promote judicial efficien[cy].” *Id.* at 2. Finally, Respondents state that Complainant consents to the request for a further extension.

While Respondents assert good cause for an extension, specifically that they are working toward a resolution of the matter, a 30-day extension would result in no response until 81 days

after the Complaint was filed should no settlement be reached. This extended delay is not reasonable at this early stage of the proceeding. Accordingly, the motion is **GRANTED IN PART** and **DENIED IN PART**. A response to the Complaint is extended by 21-days, to May 31, 2024.

The parties are reminded to review the Initial Order regarding suggested numbering of motions with similar titles and for various deadlines.

The parties are also reminded that if a settlement agreement is reached, it must be submitted to the undersigned with a motion for approval.



Linda S. Harris Crovella
Administrative Law Judge